

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Charlie Hartford	Team: Squad #12	CCRB Case #: 201804175	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 05/26/2018 2:28 PM, Saturday, 06/09/2018 12:00 AM	Location of Incident: 2327 Mermaid Avenue	18 Mo. SOL 11/26/2019	Precinct: 60		
Date/Time CV Reported Tue, 05/29/2018 8:34 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/29/2018 8:34 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jonathan Tino	18099	959299	060 PCT
2. SGT Richard Cohen	01933	905584	060 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Martin Dicostanzo	10536	956595	060 PCT
2. POM Michael Saluzzi	18499	951198	060 PCT
3. POM Robert Blanc	16723	959494	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Richard Cohen	Abuse: On May 26, 2018, Sergeant Richard Cohen forcibly removed § 87(2)(b) to the hospital	A . Exonerated
B . SGT Richard Cohen	Off. Language: On May 26, 2018, Sergeant Richard Cohen made remarks to § 87(2)(b) based upon race.	B . Unsubstantiated
C . SGT Richard Cohen	Abuse: On June 9, 2018, Sergeant Richard Cohen forcibly removed § 87(2)(b) to the hospital	C . Unsubstantiated
D . SGT Richard Cohen	Discourtesy: On June 9, 2018, Sergeant Richard Cohen spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . SGT Richard Cohen	Discourtesy: On June 9, 2018, Sergeant Richard Cohen acted discourteously toward § 87(2)(b)	E . Unsubstantiated
F . SGT Richard Cohen	Abuse: On June 9, 2018, Sergeant Richard Cohen searched § 87(2)(b)	F . Substantiated
G . POM Jonathan Tino	Abuse: On June 9, 2018, Police Officer Jonathan Tino took photographs of § 87(2)(b)	G . Exonerated

Case Summary

On May 29, 2018, § 87(2)(b) filed this complaint with the CCRB by phone. On June 13, 2018, § 87(2)(b) filed an additional complaint under CCRB § 87(2)(g)

§ 87(2)(b)

On May 26, 2018, at approximately 2:28 p.m., in the vicinity of 2327 Mermaid Avenue in Brooklyn, Sergeant Richard Cohen of the 60th Precinct forcibly removed § 87(2)(b) to the hospital (**Allegation A: Abuse of Authority, exonerated**). Sgt. Cohen allegedly made remarks to § 87(2)(b) based upon race (**Allegation B: Offensive Language, unsubstantiated**).

On June 9, 2018, at approximately 1:31 p.m., in the vicinity of 2327 Mermaid Avenue in Brooklyn, Sgt. Cohen forcibly removed § 87(2)(b) to the hospital (**Allegation C: Abuse of Authority, unsubstantiated**). Sgt. Cohen allegedly acted and spoke discourteously towards § 87(2)(b) (§ 87(2)(b) (**Allegations D and E: Discourtesy, unsubstantiated**)). Sgt. Cohen supervised officers searching § 87(2)(b) wallet (**Allegation F: Abuse of Authority, substantiated**). Police Officer Jonathan Tinao of the 60th Precinct took photographs of § 87(2)(b) (**Allegation G: Abuse of Authority, exonerated**).

This case contains surveillance video footage depicting both incidents (BR 12 and 19). Summaries of this footage may be reviewed at BR 13 and BR 32.

Findings and Recommendations

Allegation (A) Abuse of Authority: On May 26, 2018, Sergeant Richard Cohen forcibly removed § 87(2)(b) to the hospital.

It is undisputed that on May 26, 2018, Sgt. Cohen forcibly removed § 87(2)(b) to the hospital.

In her sworn statement, § 87(2)(b) stated that at approximately 2:28 p.m. on May 26, 2018, she went to the Big Sam Food Corporation, located at 2327 Mermaid Avenue in Brooklyn (BR 01). On her way to the store, she observed a marked police van in front of the establishment. § 87(2)(b) immediately began yelling at the officers in the vehicle, stating, “Stop disrespecting me,” and “Stop fucking playing games with me. Listen to me. Get to know me, get to know the neighborhood.” In response, Sgt. Cohen exited from the front passenger seat. § 87(2)(b) told Sgt. Cohen, “Stop listening to what people in the neighborhood says. Stop listening to them. Come talk to me, § 87(2)(b) Sgt. Cohen replied, “Listen § 87(2)(b) I’m going to send you to the hospital.” § 87(2)(b) replied, “Fuck you, call the bus. Call them, call them.” Sgt. Cohen then instructed two other officers present to handcuff § 87(2)(b) Two EMTs arrived and removed § 87(2)(b) to the hospital.

§ 87(2)(g)

§ 87(2)(b)

Sgt. Cohen stated that at approximately 2:28 p.m., on May 26, 2018, he went to 2327 Mermaid Avenue in Brooklyn to sign the memo books of the officers of the officers stationed in that area: PO Martin Discontazo, PO Jonathan Tinao, PO Robert Blanc and PO Meo [First name unknown] (BR 04). While he was in the area, he observed § 87(2)(b) running into traffic, causing people

to jam on their brakes, and yelling at the occupants of these vehicles. Sgt. Cohen stated that he has prior familiarity with § 87(2)(b) and that § 87(2)(b) generally does not seem like she can take care of herself. In addition to wandering into traffic, § 87(2)(b) will aggressively “run up to people” and make nonsensical statements. On the date of incident, § 87(2)(b) proceeded to approach Sgt. Cohen with an aggressive demeanor and yell random, nonsensical statements “right up in [his] face.” Sgt. Cohen instructed § 87(2)(b) to step back multiple times, and § 87(2)(b) did not comply with these instructions. Sgt. Cohen characterized § 87(2)(b) demeanor as “aggressive” because of these factors. Sgt. Cohen made the determination to remove § 87(2)(b) to the hospital as an emotionally disturbed person (EDP), exclusively because she was not making sense, was aggressively approaching people, and was running into traffic. Sgt. Cohen stated that he did “not really” think § 87(2)(b) posed a threat to officer safety, but that she seemed to pose a danger to her own.

PO Tinao had little recollection of this incident on the date of his CCRB interview; however, PO Tinao affirmed being generally familiar with § 87(2)(b) in a manner that was consistent with Sgt. Cohen’s testimony (BR 05). PO Dicostanzo’s statement was consistent with that provided by Sgt. Cohen (BR 06).

PO Saluzzi and PO Blanc did not provide testimony for this date of incident (BR 07 and 08).

The AIDED report prepared by PO Dicostanzo states that § 87(2)(b) was behaving erratically, cursing and screaming, and verbally threatening other people (BR 30).

§ 87(2)(a) PHL § 18(6)

Surveillance footage from the Big Sam Food corporation depicts § 87(2)(b) repeatedly walking up to officers, hunching her body forward, and pointing at officers. An excerpt of the relevant portions of video evidence may be reviewed at BR 11, while the full footage and accompanying summary may be reviewed at BR 12 and BR 13, respectively. The video footage contains gaps consistent with that of a motion sensor activated camera, and § 87(2)(b) appears to be handcuffed by officers during one of the unrecorded intervals.

Patrol Guide Procedure 221-13 defines an emotionally disturbed person as a person who appears to be mentally ill or temporarily deranged and is conducting themselves in a manner likely to result in a serious injury to themselves or others (BR 14). The Patrol Guide demands that emotionally disturbed persons be removed to the hospital.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation (B) Offensive Language: On May 26, 2018, Sergeant Richard Cohen made remarks to § 87(2)(b) based upon race.

In her sworn statement, § 87(2)(b) stated that Sgt. Cohen told her, “Nigga, get out of my face before I put you in the hospital,” “Nigger, you’re going to the hospital,” “Nigger, I’m going to call the ambulance,” and “Stop cursing at me, nigga” (BR 01). This is consistent with § 87(2)(b) initial complaint and IAB statement (BR 02), in which she simply states that an officer called her a “nigga.”

Sgt. Cohen, PO Tinao and PO Dicostanzo all denied that Sgt. Cohen made this statement (BR 04-06).

EMTs were not on scene at the time Sgt. Cohen allegedly made this statement (BR 01).

The video evidence obtained by the investigation does not contain audio depicting the incident (BR 12). A request for BWC returned negative results pertaining to this incident, and indicated that patrol officers assigned to Tour 2 in the 60th Precinct were not equipped with BWC on this date (BR 35).

§ 87(2)(b) has made five CCRB complaints which include allegations of offensive language, all of which were filed since 2017 (BR 15). Of the total of six complaints filed by § 87(2)(b) that have been fully investigated by the CCRB, three contained allegations that were closed as unfounded, while the remainder of the allegations were closed as unsubstantiated (BR 15).

Sgt. Cohen has been a member of service for 25 years. In that time, Sgt. Cohen has never been the subject of a substantiated CCRB allegation, nor has it been alleged that he used offensive language in any prior instance.

Patrol Guide Procedure 203-10 prohibits officers from making discourteous remarks regarding another person’s race (BR 17).

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation (C) Abuse of Authority: On June 9, 2018, Sergeant Richard Cohen forcibly removed § 87(2)(b) to the hospital.

It is undisputed that on June 9, 2018, Sgt. Cohen forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) stated during her verified interview that at a time she reported as approximately 12:00 p.m., but determined by the investigation to be approximately 1:31 p.m. on June 9, 2018, she was going to an ATM located at the Big Sam Food Corporation when she observed Sgt. Cohen exiting a police vehicle located at the intersection of Mermaid Avenue and West 24th Street in Brooklyn (BR 03). § 87(2)(b) approached Sgt. Cohen and stated, “Mr. Cohen, Internal Affairs is investigating you and I don’t want no problems. I wanna know, why do you keep harassing me?” § 87(2)(b) described her demeanor as calm, and the volume of her voice as a “five out of ten.” Sgt. Cohen then told § 87(2)(b) that she was going to the hospital, in

response to which § 87(2)(b) became “hyper” and started yelling. § 87(2)(b) also provided an alternative version of events where Sgt. Cohen immediately “ran behind” her and told her she was going to the hospital. In response, § 87(2)(b) told Sgt. Cohen, “I’m not running, I’m walking fast.” An ambulance then arrived on scene, and two EMTs removed § 87(2)(b) to § 87(2)(b).

§ 87(2)(g)

Sgt. Cohen stated that at approximately 1:31 p.m. on June 9, 2018, Sgt. Cohen was in the vicinity of 2327 Mermaid Avenue in Brooklyn to sign the memo books of the officers at the shooting post at West 24th Street and Mermaid Avenue when “the same thing” happened as during the May 26, 2018 incident; namely, Sgt. Cohen observed § 87(2)(b) aggressively approaching people on the street and running into traffic (BR 04). Sgt. Cohen determined § 87(2)(b) to be an EDP upon observing her engaging in this behavior, which was almost at the very outset of the interaction. § 87(2)(b) approached Sgt. Cohen and proceeded to issue what Sgt. Cohen described as “random babblings.” Sgt. Cohen replied, § 87(2)(b) do you need to go to the hospital?” When asked to describe § 87(2)(b) response to this, Sgt. Cohen stated, “I wish I could tell you,” and further stated that he has no idea what § 87(2)(b) is saying as a general matter. Sgt. Cohen made the decision to have § 87(2)(b) removed to the hospital as an EDP out of concern for her safety. There were no additional reasons why she was removed to the hospital or why she was considered to be an EDP aside from her aggressively approaching people on the street and running into traffic. Sgt. Cohen denied that § 87(2)(b) ever tried to walk away during the incident.

While PO Saluzzi, who was Sgt. Cohen’s driver on the date of incident, provided a statement that was generally consistent with that of Sgt. Cohen, PO Saluzzi specifically denied that § 87(2)(b) was wandering in and out of traffic on this date (BR 07).

PO Dicostanzo stated that at the time he and his partner, PO Tinao, arrived on scene in response to a call placed over the radio by Sgt. Cohen, § 87(2)(b) was already in handcuffs and officers were waiting for the ambulance to arrive (BR 06). Apart from being informed by Sgt. Cohen that PO Dicostanzo that § 87(2)(b) had been acting erratically and was walking in and out of the street again, PO Dicostanzo was not aware of any reasons why § 87(2)(b) was removed to the hospital.

§ 87(2)(g) PO Tinao stated that at the time he and PO Dicostanzo arrived on scene, § 87(2)(b) was rambling, cursing, screaming and not making sense (BR 07). PO Tinao did not recall if § 87(2)(b) was wandering in and out of traffic on this date.

PO Blanc had no recollection of this incident on the date of his CCRB interview (BR 08).

Each officer interviewed by the investigation noted having numerous previous interactions with § 87(2)(b). Sgt. Cohen, PO Saluzzi and PO Tinao all stated that with little to no exception, § 87(2)(b)

§ 87(2)(b) screams profanity and appears incoherent and mentally unstable during these encounters (BR 04, 05 and 07). PO Dicostanzo stated that on some days, § 87(2)(b) demeanor is normal and that it is possible to hold a normal conversation with her, while on other days she will engage in the aforementioned behaviors (BR 06). By contrast, PO Blanc stated that he interacts with § 87(2)(b) approximately three times per week, and that these interactions have never extended past exchanging pleasantries with § 87(2)(b) (BR 08).

The AIDED report prepared by PO Tinao states that § 87(2)(b) was “rambling and distressed” and was being “verbally aggressive,” but does not mention anything about § 87(2)(b) wandering into traffic (BR 31).

§ 87(2)(a) PHL § 18(6)

This allegation is depicted by video evidence. § 87(2)(g)

§ 87(2)(b) In this footage, Sgt. Cohen is depicted following § 87(2)(b) grabbing her by the arms, and frog-marching her back towards the vicinity of the Big Sam Food Corporation. When presented with this footage and asked if this refreshed his recollection of § 87(2)(b) walking away during the incident, Sgt. Cohen stated, “Right, well that’s after I told her she was going to the hospital” (BR 04). The footage obtained by the investigation does not portray § 87(2)(b) behavior prior to this point in the interaction.

Patrol Guide Procedure 221-13 defines an emotionally disturbed person as a person who appears to be mentally ill or temporarily deranged and is conducting themselves in a manner likely to result in a serious injury to themselves or others (BR 14). The Patrol Guide demands that emotionally disturbed persons be removed to the hospital.

§ 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation (D) Discourtesy: On June 9, 2018, Sergeant Richard Cohen acted discourteously toward § 87(2)(b)

Allegation (E) Discourtesy: On June 9, 2018, Sergeant Richard Cohen acted discourteously toward § 87(2)(b)

§ 87(2)(b) stated that during the incident, she showed Sgt. Cohen a CCRB pamphlet, as well as a business card belonging to CCRB Investigator Bernardo Gutierrez, which had been left with the employees of the Big Sam Food Corporation during fieldwork conducted following § 87(2)(b) previous interview on June 5, 2018 (BR 03). Sgt. Cohen ripped up Inv. Guitterez's card using two hands while stating, "Fuck CCRB, I don't give a fuck about them." § 87(2)(b) pointed out that the interaction was being recorded, to which Sgt. Cohen stated, "I don't give a fuck about the cameras." § 87(2)(b) presented Inv. Guitterez's card, which had an approximately half-inch tear down the middle, during her CCRB interview (BR 20). § 87(2)(b) also presented a CCRB information pamphlet which appeared to be torn in two during her interview; however § 87(2)(b) did not make any allegations regarding this pamphlet (BR 33). Both documents appear to have sustained a substantial degree of wear aside from the aforementioned deformations.

§ 87(2)(b) initial complaint and phone statement § 87(2)(g) solely alleged that Sgt. Cohen stated, "I don't give a fuck about the CCRB" (BR 29 and 34).

Sgt. Cohen, PO Tinao, PO Dicostanzo, PO Saluzzi and PO Blanc were consistent in either denying that Sgt. Cohen engaged in this behavior or stating that they did not recall Sgt. Cohen being so engaged (BR 04-08).

While this portion of the interaction is depicted by video evidence, the footage contains numerous gaps consistent with the use of a motion-sensor activated sensor. § 87(2)(g)

At the outset of the excerpt attached to BR 21, § 87(2)(b) appears to present Sgt. Cohen, who is barely visible at the bottom of the screen, with a CCRB pamphlet; however, the footage then jumps ahead 15 seconds and the pamphlet can no longer be observed. While officers can be seen looking through § 87(2)(b) wallet, and § 87(2)(b) can be seen attempting to present officers with paperwork, at no time can an officer be observed ripping up any items provided by § 87(2)(b). The video evidence obtained by the investigation does not contain audio that would depict the alleged verbal discourtesies.

Patrol Guide Section 203-09 requires that officers be "courteous and respectful" with members of the public (BR 22).

§ 87(2)(g)

It is therefore recommended that **Allegations D and E** be closed as **unsubstantiated**.

Allegation (F) Abuse of Authority: On June 9, 2018, Sergeant Richard Cohen searched

§ 87(2)(b)

It is undisputed that Sgt. Cohen requested § 87(2)(b) identification. It is undisputed that Sgt. Cohen physically removed § 87(2)(b) wallet from her person. It is undisputed that officers can prepare an AIDED report without reviewing the identification of the individual receiving medical treatment.

Video evidence depicts Sgt. Cohen, who is almost entirely out of the frame at the bottom of the screen, grabbing § 87(2)(b) wallet and handing the wallet to PO Saluzzi (BR 21). This sequence of events may be reviewed beginning at the 0:44 minute mark in footage attached to BR 21. PO Saluzzi is then depicted looking through § 87(2)(b) wallet, removing an object the size of an identification card and handing it to PO Tinao. Although the footage contains gaps consistent with a motion-activated sensor, § 87(2)(b) is depicted looking through her wallet for several minutes prior to Sgt. Cohen removing her wallet. § 87(2)(g)

At 0:55 minutes and 01:15 minutes in the excerpt attached to BR 22, § 87(2)(b) can be observed seemingly grabbing for her wallet.

In § 87(2)(b) sworn statement, § 87(2)(b) stated that Sgt. Cohen ran a check on her ID, and that § 87(2)(b) stated, “Fuck you,” in response (BR 03). In her phone statement, § 87(2)(b) stated that she was asked to present identification during the incident, and that Sgt. Cohen removed § 87(2)(b) wallet from her hand and took out her ID because she was taking too long (BR 29). In her initial complaint for CCRB § 87(2)(b) § 87(2)(b) stated that Sgt. Cohen requested her ID and took her pocketbook, but did not specifically allege a search.

The officers interviewed by the investigation were consistent in stating that an ID is not necessary to prepare an AIDED card, though it facilitates the process (BR 04-08).

In his CCRB testimony, Sgt. Cohen stated that § 87(2)(b) provided her wallet voluntarily during the interaction at his request, and that officers looked through the wallet exclusively to locate § 87(2)(b) ID so that they could prepare an AIDED report (BR 04). After Sgt. Cohen was played the above-referenced footage multiple times during his interview and asked whether it refreshed his memory of § 87(2)(b) grabbing for her wallet, Sgt. Cohen ultimately stated, “I don’t think she grabbed for it back. I don’t remember 100%. It was given back to her. Nobody wants § 87(2)(b) wallet.”

§ 87(2)(g) PO Saluzzi stated that § 87(2)(b) voluntarily provided her wallet at the request of an officer whose identity he did not recall. PO Saluzzi identified himself as the officer looking through § 87(2)(b) wallet in the footage. PO Saluzzi stated that reviewing this footage did not refresh his independent recollection of § 87(2)(b) grabbing for her wallet back during the interaction.

PO Tinao stated during his interview that he did not recall if § 87(2)(b) had her wallet out during the interaction. Upon being presented with the above-referenced footage, PO Tinao denied being present for this portion of the interaction (BR 05).

PO Dicostanzo stated that § 87(2)(b) ever had her wallet out during the interaction, and if officers looked through § 87(2)(b) wallet, it was before he arrived (BR 06). However, PO Dicostanzo identified PO Tinao as being present upon being presented with surveillance footage.

PO Blanc had no recollection of being present for this incident (BR 08).

§ 87(2)(g)

§ 87(2)(g)

The Court of Appeals of New York held in People v. Hodge, 44 N.Y.2d 553, 406 N.Y.S.2d 736, 378 N.E.2d 99 (1978) that “all warrantless searches are presumptively unreasonable” (BR 26). In People v. Gonzalez, 39 N.Y.2d 122, 128, 383 N.Y.S.2d 215, 219, 347 N.E.2d 575, 580 (1976), the Court of Appeals of New York wrote: “Consent to search is voluntary when it is a true act of the will, an unequivocal product of an essentially free and unconstrained choice. Voluntariness is incompatible with official coercion, actual or implicit, overt or subtle” (BR 25).

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **substantiated**.

Allegation (G) Abuse of Authority: On June 9, 2018, Police Officer Jonathan Tinao took photographs of § 87(2)(b)

PO Tinao is depicted by video surveillance footage taking a photograph of the item handed to him by PO Saluzzi. § 87(2)(g)

§ 87(2)(g)

Upon being presented with this footage, PO Tinao denied being present for this portion of the incident (BR 05). PO Tinao stated that he did not recall if another officer provided him with a photograph of § 87(2)(b) identification for the purpose of preparing the AIDED report pertaining to this incident. Upon being presented with the same footage, however, PO Dicostanzo and Sgt. Cohen both identified PO Tinao as being the officer who photographed § 87(2)(b) wallet (BR 06). Sgt. Cohen further stated that it seemed from the video that PO Tinao took a photograph of § 87(2)(b) ID in this footage. Sgt. Cohen stated that the only reason to take such a photograph would be to prepare an AIDED card later on.

NYPD Operations Order 20 states that officers are "permitted, but not required, to use Department smartphones/tablets to photograph or video record... all incidents when members of the service are taking, or attempting to take, an individual into custody (e.g., arrests, protective custody of an emotionally disturbed person, etc.)."

§ 87(2)(g)

it is therefore recommended that **Allegation G** be closed as **exonerated**.

Civilian and Officer CCRB Histories

- This is one of 30 CCRB complaints filed by § 87(2)(b) and one of 20 complaints that fell in the CCRB's jurisdiction (BR 15). Of these cases, 13 have been closed without a full investigation.
 - § 87(2)(b)
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- Sgt. Cohen has been a member of service for 25 years. In that time, Sgt. Cohen has been the subject of 22 allegations in 12 other cases, none of which were substantiated § 87(2)(g)
- PO Tinao has been a member of service for three years. This is the first case in which he has been listed as a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.

